



New WILL Lawsuit Targets Warrantless, No Limits Government Surveillance

WILL filed a new lawsuit seeking to prevent AI-powered government surveillance through Flock cameras without a warrant or valid warrant exception. The lawsuit was filed on behalf of a coalition of taxpayers and Waukesha County citizens against 11 cities and villages in Waukesha County, plus the Waukesha County government.

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Rick Esenberg President and General Counsel

The News: The Wisconsin Institute for Law & Liberty (WILL) filed a new lawsuit seeking to prevent AI-powered government surveillance through Flock cameras without a warrant or valid warrant exception. The lawsuit was filed on behalf of a coalition of taxpayers and Waukesha County citizens against 11 cities and villages in Waukesha County, plus the Waukesha County government.

The Quote: WILL President and General Counsel, Rick Esenberg, stated, “Flock cameras essentially place the public under constant surveillance. Our lawsuit will not result in their removal or the end of their use. But it will ensure their use is accompanied by reasonable safeguards that will balance the needs of law enforcement with the public’s right to privacy.”

WILL Managing Vice President and Deputy Counsel, Dan Lennington, stated, “When police track people through GPS, cell phone signals, or app usage, like Google, courts generally require a warrant. Flock cameras and Flock’s related AI-powered tools can track Americans even more accurately than those other tools. As technology advances, especially with AI, we must be vigilant to apply the Fourth Amendment to new products used by the government that track our daily movements.”

Intrusive Cameras: Some cameras record movements near homes, like the one near WILL Plaintiff Haidinger’s backyard fence in Oconomowoc, or another one in Pewaukee Village, capturing everyone who enters or exits a trailer park. Flock cameras are installed near churches, gun stores, and Home Depots. Some cameras are installed outside of the seat of government, where citizens vote, seek licenses, and otherwise petition their government. There are over 120 cameras in Waukesha County, and over 1,500 in Wisconsin. Flock reports a network of 120,000 nationwide cameras monitored by over 6,000 law enforcement agencies.

Tracking Movements: Data from Flock cameras is dumped into an AI-powered database, allowing government officials (and even some private companies) to track an individual's daily movements. Flock creates vehicle travel history reports that show where people have been and even predict future movements.

The Flock Location Database is searchable by almost anyone with an account. Police can search their own cameras but also perform regional or nationwide searches. For example, Elm Grove officers searched their six cameras about 250 times in June, July, and August 2026. But during that same period, outside agencies— mostly from other states—searched data from Elm Grove's cameras about 3 million times. No Wisconsin agency requires probable cause or a warrant before searching this database. Most agencies have unrestrictive policies and WILL find one agency with no policy (Elm Grove).

Legal Argument: We argue that government searches of the Flock Location Database without a warrant or valid exception violate the Fourth Amendment under *Chatrle v. United States* (2026). This was a significant United States Supreme Court case that held that acquiring Google Location History requires a warrant. Our data has shown that Flock monitoring can be even more precise and invasive than "Google Location History."

The goal of the lawsuit is to apply the Fourth Amendment to searches of the Flock Location Database, just like when the police use other similar surveillance measures like GPS monitoring, cellphone location searches, or searches of app data. As in those cases, a warrant is the default. On the other hand, multiple Fourth Amendment exceptions could apply such as the emergency exception (e.g. kidnapping, missing child or adult, active shooter, bomb threat, medical emergency, hot pursuit, suicide threat) or the consent exception (e.g. a person grants permission to search for their stolen car). If successful, Flock searches would be treated similarly to other electronic database searches where warrants or exceptions are already required.

Recent Developments: Multiple law enforcement agencies across Wisconsin have begun to cancel their contracts with Flock such as Winnebago and [Fond Du Lac Counties](#). In Southeast Wisconsin, [Milwaukee](#), [Racine](#) and [Kenosha](#) Counties have also decided to cancel Flock contracts or to substantially change their policies (in the case of Milwaukee).

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